

Superior Court of the State of California, County of Orange

TENTATIVE RULINGS FOR DEPARTMENT C16

HON. JUDGE CARMEN R. LUEGE

Date: July 24th, 2026

Posted: July 23th, 4:30 PM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4:30 p.m. on Thursday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5216. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appeareances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Remote Appearances: Department C16 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 10:00 a.m. on Friday, check-in online via the Court's civil video appearance website at [Civil Appearance Procedure and Information | Superior Court of California | County of Orange \(occourts.org\)](https://www.occourts.org); (2) participants will then be prompted to join the courtroom's Zoom hearing session; and (3) the calendar will be displayed and participants will then be instructed to rename their Zoom name to include their hearing's calendar number. Check-in instructions and an instructional video are available on the court's website. Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (<https://www.occourts.org/system/files/hr/div3.pdf>.)

#	Case Name	Tentative
49	Buford vs. Rees 25-01478579	Motion for Preference Plaintiffs Marianne Buford and Gerald Minich’s Motion for Trial Preference is GRANTED. <u>Motions for Trial Preference</u> Unless the court orders otherwise, the motion must be supported by a declaration of the moving party stating that all essential parties have been served with process or have appeared. (Code Civ. Proc., § 36(c)(1).) The heightened clear-and-convincing-evidence standard applicable to discretionary preference under section 36(d) does not apply to a motion under section 36(a). (<i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 533–534.) Nor does section 36(a) require proof of death, incapacity, or likely unavailability for trial. (<i>Id.</i> at p. 534.) “Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party’s ‘<i>health ... is such that a preference is necessary to prevent prejudicing [the plaintiff’s] interest in the litigation.</i>’ (Italics added.)” (<i>Ibid.</i>) In support of the motion, the moving party’s attorney may submit an affidavit based upon information and belief as to the medical diagnosis and prognosis of the moving party. (Code Civ. Proc., § 36.5.) Section 36 “was enacted for the purpose of assuring that an aged or terminally ill plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted.” (<i>Looney v. Superior Court</i> (1993) 16 Cal.App.4th 521, 532.) If the court finds that a party meets the requirements of section 36(a), the court cannot balance conflicting interests of opposing litigants. (<i>Fox v. Superior Court, supra</i>, 21 Cal.App.5th at p. 535 [holding “preference must be granted” and “[n]o weighing of interests is involved” where the moving party meets the standard]; <i>Swaithe v. Superior Court</i> (1989) 212 Cal.App.3d 1082, 1085 [finding trial preference under section 36 can operate to truncate the discovery rights of other parties]; <i>Pabla v Superior Court</i> (2023) 90 Cal. App. 5th 599, 603-604 [the trial court lacks discretion to set a trial date beyond 120 days and administrative or scheduling reasons are irrelevant].) Unless the court orders otherwise, the motion must be “supported by a declaration of the moving party that all essential parties have been served with process or have appeared.” (Code Civ. Proc., § 36(c)(1).) If the motion is granted, trial must be set within 120 days after the motion is granted. (Code Civ. Proc., § 36(f).) <u>Application</u> Minich, as a named plaintiff, has a substantial interest in the action. He is 83 years old. (Minich Decl., ¶¶ 2–3.) Minich submits his own declaration and medical records showing severe cardiac and pulmonary conditions, recent major procedures and hospitalization, progressive shortness of breath, exhaustion after minimal exertion, and significant mobility limitations. (Minich Decl., ¶¶ 4–11, Ex. A.) He states that his health continues to decline and expresses concern that

		further delay will impair his ability to attend trial, testify before a jury, assist counsel, and fully present his claim. (Minich Decl., ¶ 12.) JCK Computing opposes the motion and argues that Minich’s conditions are largely longstanding and that neither his declaration nor the medical records establish that an ordinary trial schedule would impair his ability to participate in the litigation. JCK notes that Minich has participated in discovery and does not claim any cognitive impairment affecting his ability to communicate. JCK also contends that an expedited trial would prejudice its ability to complete outstanding depositions, medical discovery, an independent medical examination of Buford, and expert preparation. (Cook Decl., ¶¶ 2–3.) However, Minich’s declaration and medical records show recent surgeries, hospitalization, progressive shortness of breath, exhaustion after minimal exertion, inability to drive, and other functional limitations that may impair his ability to attend and participate meaningfully in a later trial. (Minich Decl., ¶¶ 5–12, Ex. A.) His prior participation in discovery does not establish that he will remain able to participate after further delay. The record therefore establishes that Minich’s health makes preference necessary to prevent prejudice to his interest in the litigation. Because Minich satisfies section 36(a), preference is mandatory, and the court may not balance JCK’s discovery and trial-preparation interests against Minich’s statutory right to preference. (<i>Fox v. Superior Court</i>, <i>supra</i>, 21 Cal.App.5th at p. 535.) In any event, the record indicates that JCK has conducted substantial discovery and had opportunities to pursue the remaining discovery. (Rodenhuis Decl., ¶¶ 4–10; Rodenhuis Supp. Decl. ¶¶ 7-10.) Plaintiffs did not submit the declaration concerning service or appearance contemplated by section 36(c)(1). Nevertheless, the court’s records establish that all essential parties have been served and have appeared. The court therefore dispenses with the separate declaration pursuant to section 36(c)(1). Therefore, the motion is GRANTED. Trial is scheduled on 11/19/2026 at 8:30am in Department C16. Plaintiffs are ordered to give notice.
51	Chocolate Bash the Outlets at Orange LLC vs. Orange City Mills Limited Partnership 26-01544712	1. Demurrer to Complaint 2. Motion to Strike Complaint Defendant Orange City Mills Limited Partnership’s Demurrer to Complaint is SUSTAINED as to the third cause of action for unjust enrichment and the claim referenced as “Implied Warranty & Good Faith and Fair Dealing”. Should Plaintiff wish to amend, the amended pleading must be filed within 20 days of notice of this ruling. As to the second cause of action for fraud the Demurrer is OVERRULED for the following reasons:

		The elements of fraud are: “(a) [a] misrepresentation (false representation or promise, concealment, or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (<i>Lazar v. Sup. Court</i> (1996) 12 Cal.4th 631, 638-639; <i>Muraoka v. Budget Rent-A-Car, Inc.</i> (1984) 160 Cal.App.3d 107, 119.) “A promise made without any intention of performing it constitutes fraud.” (<i>Union Flower Market v. Southern Cal. Flower Market</i> (1938) 10 Cal.2d 671, 676). “Thus, in a promissory fraud action, to sufficiently allege defendant made a misrepresentation, the complaint must allege (1) the defendant made a representation of intent to perform some future action, i.e., the defendant made a promise, and (2) the defendant did not really have that intent at the time that the promise was made, i.e., the promise was false.” (<i>Beckwith v. Dahl</i> (2012) 205 Cal.App.4th 1039, 1060). Fraud must be pleaded with specificity. (<i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 878.) But with regard to intent, “the falsity of [a] promise is sufficiently pled with a general allegation the promise was made without intention of performance.” (<i>Beckwith</i>, supra, 205 Cal.App.4th at 1060) The Complaint alleges that on 8/6/25, the parties entered into a Lease Agreement for commercial space located at The Outlets at Orange. (Complaint ¶¶ 8-9.) On 11/18/25, Plaintiff emailed Defendant’s agents that Plaintiff had been experiencing significant and costly delays with the City of Orange in obtaining permits because of newly discovered pre-existing and unforeseen damage to the interior portion and structure of Premises walls. (Id. at ¶ 10.) Although the Lease states the Premises is leased “as is,” Plaintiff contends that the Lease consists only of the leased space and not the interior/structure of the walls. (Id. at ¶¶ 11-13.) Plaintiff requested Defendants provide rent relief while Plaintiff attempted to mitigate the damage. (Id. ¶ 14.) Plaintiff’s counsel then wrote a letter to Defendant reminding Defendant of their obligations under the Lease. (Id. at ¶ 15.) Defendant has ignored Plaintiff’s request. (Id. at ¶¶ 15, 16 [sic].). Plaintiff spent an amount greater than \$50,000 on repairs and a loss of profits due to the inability to open the business in a timely manner. (Id. at ¶ 16.) The Complaint then alleges Defendant made the promise to Plaintiff in the Lease without any intention of performing the portions of the Lease that said Defendant retained exclusive control over pipes, all structures inside the walls and the structural portion of the walls inside the Premises. (Id. at ¶¶ 26, 27.) The promises in the Lease were made by Defendant with the intent to induce Plaintiff into entering into the Lease. (Id. at ¶ 28.) At the time the Lease was entered into, Plaintiff could not have discovered the pre-existing structural defects. (Id. at ¶ 29.) Plaintiff relied on the Lease. Plaintiff contacted Defendant, Defendant failed to respond, and as a result, Plaintiff has been damaged. (Id. ¶¶ 30-33.) The second cause of action has been sufficiently pled to OVERRULE the demurrer on this cause of action. The demurrer is SUSTAINED as to the third cause of action for the following reasons: Unjust enrichment is a remedy akin to restitution, not a separate cognizable cause of action. (<i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 231; <i>Hill v. Roll Intern. Corp.</i> (2011) 195 Cal.App.4th 1295, 1307; <i>Levine v. Blue Shield of Calif.</i> (2010) 189 Cal.App.4th 1117, 1138; <i>Durell v. Sharp</i>
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		<i>Healthcare</i> (2010) 183 Cal.App.4th 1350, 1370; <i>Melchior v. New Line Productions, Inc.</i> (2003) 106 Cal. App. 4th 779, 793.) The Fourth District, Division 3, explained in <i>Munoz v. MacMillan</i> (2011) 195 Cal.App.4th 648: “There is no freestanding cause of action for ‘restitution’ in California. [Citation omitted.] Common law principles of restitution require a party to return a benefit when the retention of such benefit would unjustly enrich the recipient; a typical cause of action involving such remedy is ‘quasi-contract.’” (<i>Munoz v. MacMillan</i> (2011) 195 Cal.App.4th 648, 661.) Thus, there must be a valid cause of action on which to support the remedy of restitution or unjust enrichment. (<i>See Rutherford, supra</i>, 223 Cal.App.4th 221, 231 [construing the unjust enrichment claim to be a cause of action for quasi-contract claim seeking restitution].) A party to an express contract may assert a claim for restitution based on unjust enrichment by “alleg[ing in that cause of action] that the express contract is void or was rescinded.” [Citation.] A claim for restitution is permitted even if the party inconsistently pleads a breach of contract claim that alleges the existence of an enforceable agreement. (<i>Rutherford Holdings, LLC v. Plaza Del Rey</i>, <i>supra</i>, 223 Cal.App.4th at p. 231, internal citations omitted, bold added.) Thus, while a Complaint may plead the alternative of both breach of contract and restitution based on a quasi-contract, to sufficiently plead unjust enrichment/restitution, a complaint must allege that the express contract is void or was rescinded. Here, the Complaint contains no such allegation. Thus, the demurrer on this ground is SUSTAINED with leave to amend. Lastly, Defendant demurs to the unnumbered cause of action for “implied warranty of good faith and fair dealing.” The demurrer to this cause of action is SUSTAINED as Plaintiff has failed to plead any facts to support the cause of action and fails to comply with Rules of Court, Rule 2.112. Defendant to give notice. Defendant moves to strike the prayer for punitive damages from the Complaint. But on 7/7/26, Plaintiff filed a request to dismiss the claim for punitive damages, which was entered on the same date. (ROA 49.) Thus, the instant motion is DENIED AS MOOT. Plaintiff has already dismissed punitive damages from the Complaint.
52	Shaffer vs. Hussein 26-01542357	Motion for Leave to File Cross Complaint Defendant Syed Zakir Hussain’s (Erroneously sued as Syed Zakir Hussein) unopposed motion for leave to file a cross-complaint is GRANTED. (Code of Civ. Proc. § 426.50.)

		Defendant to file the Cross-Complaint attached to the instant motion as Exhibit A, without any changes, within 10 days of this ruling. Moving Party is to give notice.
53	Varilease Finance, Inc. vs. Tactical Fleet Services, LLC 23-01301701	Motion to Appear Pro Hac Vice The unopposed Application of Seamus W. Appel to appear as counsel <i>pro hac vice</i> on behalf of Plaintiff Varilease Finance, Inc. is GRANTED. Moving attorney met the requirements of California Rules of Court, rule 9.40. Plaintiff or Seamus W. Appel to give notice.
54	Andrews vs. General Motors, LLC 24-01448034	Motion for Attorney Fees The Motion for Attorneys’ Fees and Costs brought by Plaintiff Kimberly Andrews is GRANTED, in part. Defendant General Motors, LLC is ordered to pay Plaintiff attorneys’ fees in the amount of \$20,439.00 and costs in the amount of \$1,010.83, pursuant to Civil Code section 1794, subdivision (d). Plaintiff’s evidentiary objections are OVERRULED. (ROA No. 78.) It is undisputed the Song-Beverly Act allows a prevailing plaintiff to recover “costs and expenses, including attorneys’ fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, §1794, subd. (d).) Additionally, it is undisputed Plaintiff qualifies as a “prevailing party,” for purposes of this provision. Consistent with the Offer to Compromise reached by the parties, the Judgment states: “Plaintiff’s attorney’s fees, expenses and costs that have been reasonably incurred pursuant to California <i>Civil Code</i> § 1794(d) may be determined by the Court via noticed motion. For purposes of any such motion, GM agrees that Plaintiff is the prevailing party.” (See ROA No. 66 [Judgment]; See also ROA No. 45 [Offer to Compromise].) Lastly, there is no dispute this motion was timely brought. (See Cal. Rules of Court rules 3.1702(b)(1) and 8.104(a).) The instant motion was filed on May 11, 2026, prior to entry of Judgment on May 13, 2026. (See ROA Nos. 57 and 66; See also <i>Yuba Cypress Housing Partners, Ltd. v. Area Developers</i> (2002) 98 Cal.App.4th 1077, 1086.) “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (<i>PLCM Group v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) “ ‘In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of

	the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other case.” (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41; See also <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.) The Court approves the following rates as reasonable: (1) \$595 per hour for Joseph Kaufman; (2) \$375 per hour for Scott Sanchez; (3) \$375 per hour for Christopher Hunt; and (4) \$125 per hour for Paralegal Melissa Lopez. (See ¶3, ¶6-¶7 and ¶13 of Kaufman Declaration [ROA No. 51]; See also ¶11 and ¶13-¶14 of Sanchez Declaration [ROA No. 55].) The Court has substantially reduced, only, the rate requested for Melissa Lopez, which ranged from \$175 per hour up to \$250 per hour. (See ¶13 of Kaufman Declaration.) As Ms. Lopez has only 3 years of paralegal experience (<i>Ibid.</i>), the Court finds the requested rates are excessive and outside the prevailing fees in the community. The hourly rate found to be reasonable, given the years of experience attested to, is \$125.00. Thereafter, “Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.” (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 34 [cleaned up internal quotations].) “A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (<i>Ibid.</i> [cleaned up internal quotations].) Having reviewed the attached billing and the briefs filed herein, the Court finds the following hours were reasonably incurred: (1) 6.2 hours by Joseph Kaufman; (2) 43.0 hours by Scott Sanchez; (3) 0.00 hours by Christopher Hunt; and (4) 5.0 hours by Melissa Lopez. Reductions were made, where the amount of time billed was excessive considering the work submitted and the experience of counsel, or where work was found to be duplicative or unnecessary. In particular, the Court struck all hours claimed in connection with a Motion to Compel Deposition, as Plaintiff was already awarded sanctions to compensate for these fees. (See ROA No. 45.) Additionally, reductions were made based on unnecessary client communications. These reductions include charges for reviewing and replying to a “client correspondence thanking firm for assistance with lemon vehicle following GM’s repeat noncompliance with the law” (¶2 of Kaufman Declaration and Exhibit A thereto, at pp. 7 [1/20/26] [ROA No. 51]) and a correspondence involving “gratitude for firm’s assistance, next vehicle purchase, and NHTSA research advice.” (<i>Id.</i> at 2/05/2026.) These fees were not reasonably incurred “in connection with the commencement and prosecution” of this action. (Civ. Code, § 1794, subd. (d).) The Court denies the request for a multiplier, as this case did not involve any novel or difficult legal or factual issues. This was a simple lemon law action, which did not require complex litigation and settled within a year.
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		Based on the above, Plaintiff is awarded reasonable attorney’s fees in the amount of \$20,439.00. With respect to costs, it is undisputed that Plaintiff is entitled to costs as the prevailing party in this action and may pursue costs solely via motion. (See ROA Nos. 45 [Offer to Compromise] and 66 [Judgment].) In challenging the amount of costs, Defendant relies almost entirely on Code of Civil Procedure section 1033.5. (See Opposition: 12:6-14:21.) However, costs are requested pursuant to Civil Code section 1794, subdivision (d), which provides that a prevailing buyer in a Song-Beverly action “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses...determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) “[I]t is clear the Legislature intended the word ‘expenses’ to cover items not included in the detailed statutory definition of ‘costs.’” (<i>Jensen v. BMW of North America, Inc.</i> (1995) 35 Cal.App.4th 112, 137 [disapproved on other grounds in <i>Rodriguez v. FCA US LLC</i> (2024) 17 Cal.5th 189].) Based on the above, Plaintiff is entitled to recover costs beyond those permitted within Code of Civil Procedure section 1033.5, provided the costs are found to have been “reasonably incurred.” Having reviewed the attached Memorandum of Costs and all briefs, the Court permits all costs except the following: (1) \$85.07 for filing the Motion for Attorney fees; (2) \$21.12 for filing a Reply; (3) \$21.12 for filing a Request for Dismissal; and (4) \$63.56 associated with the vehicle surrender. With respect to the first three charges, the same are stricken as they were not incurred at the time the memorandum was filed, nor supported by attached invoices. Both Code of Civil Procedure section 1033.5, subdivision (c)(1), and Civil Code section 1794, subdivision (d), require that costs be “incurred,” to be allowable. With respect to the final charge, the Court finds Plaintiff failed to establish the cost was reasonably incurred in connection with the prosecution of this action. (Civ. Code, § 1794, subd. (d).) Consequently, Plaintiff is awarded reasonable costs in the amount of \$1,010.83.
55	DFB Portal, LLC vs. Marco Fine Arts 23-01315041	Motion to Seal The Motion to Seal brought by Plaintiff DFB Portal, LLC and non-party 240 Tech, LLC is DENIED. “The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication.” (<i>Savaglio</i>

	<i>v. Wal-Mart Stores, Inc.</i> (2007) 149 Cal.App.4th 588, 596-597.) In line with the above, “[u]nless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court rule 2.550(c).) Additionally, “[a] record must not be filed under seal without a court order” and “[t]he court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal. Rules of Court rule 2.551(a).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interests will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exists to achieve the overriding interest.” (Cal. Rules of Court rule 2.550(d).) Moving parties seek to seal Exhibits 10 through 13, which consist of commercial lease agreements executed by The Dream Junction, LLC and 240 Tech LLC. Moving Plaintiff concedes the leases were offered into evidence “for the limited purpose of establishing that Plaintiff and/or 240 Tech are or were tenants of the respective leased premises” (Motion: 6:21-23; See also ¶9 of Hedrick Declaration) and asserts it is only seeking to seal “non-boilerplate negotiated lease terms” (Motion: 8:11); however, Plaintiff makes no effort to narrowly tailor the sealing order, to allow the relevant portions (i.e. the portions which simply identify the tenant and the property) into the public record. The entirety of Exhibits 10 through 13 were redacted from the public record (See ROA No. 299) and, to the extent moving parties intended to move to seal only portions, the same were not identified. As noted by Plaintiff, where confidential information is offered in connection with a motion for summary judgment and is ultimately irrelevant to the same, sealing is appropriate. (<i>Overstock.com, Inc. v. Goldman Sachs Grp. Inc.</i> (2014) 231 Cal.App.4th 471, 506.) However, this authority is inapplicable where, as here, Plaintiff concedes the <i>existence</i> of the Lease Agreements with respect to the properties identified therein, is relevant. Further, the assertion the referenced landlords will be injured by revelation of the terms of the Lease Agreements is wholly unsupported. To support sealing, Plaintiff offers the declaration of Gabriel G. Hedrick, Counsel for DFB Portal, LLC and 240 Tech, LLC. (¶1 of Hedrick Declaration.) At most, Counsel declares that the redacted lease terms “constitute confidential business information and/or trade secrets of the respective non-party landlord entities.” (¶8 of Hedrick Declaration.) Additionally, Counsel declares that public disclosure “would likely negatively affect the third party landlords’ ability to negotiate with their current or prospective tenants and would potentially eliminate any competitive advantage they may have over their competitors...” (<i>Ibid.</i>) The above statements lack foundation or personal knowledge and fails to establish an overriding interest likely to suffer prejudice. As noted by moving party, a Court may appropriately seal financial information which involves “confidential matters relating to the business operations” of a party, where the “public revelation of these matters would interfere with its ability to effectively compete in the marketplace,” if made public or where “there is a substantial probability that their revelation would prejudice the foregoing
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	legitimate interests of [entity].” (<i>Universal City Studios, Inc. v. Superior Ct.</i> (2003) 110 Cal.App.4th 1273, 1286.) However, sealing is appropriate only where a “fact-specific” declaration establishes the above. (<i>Universal City Studios, Inc. v. Superior Ct.</i> (2003) 110 Cal.App.4th 1273, 1286.) With respect to Exhibits 48 through 51, the same consists of balance sheets and profit and loss statements for DFB Portal, LLC and 240 Tech, LLC. Per Counsel, the “financial statements” and the “financial condition” of DFB Portal, LLC and 240 Tech, LLC “is not information that is generally available to the public.” (§10 of Hedrick Declaration.) Additionally, per Counsel, the documents “contain private information of persons who are not parties to this case, including loans from and distributions to both companies’ members, public disclosure of which would violate those non-parties’ rights to privacy under Article 1, Section 1 of the California Constitution.” (§10 of Hedrick Declaration.) Firstly, while the Declaration asserts financial information for third parties is included within the exhibits, to the extent this refers to 240 Tech, LLC and Kris Friedrich, the assertion is somewhat disingenuous, as both are parties to the related case <i>Marco Fine Arts, Inc. v. 240 Tech LLC</i> (2023-01317799). Additionally, both are relevant to Defendant’s defense of set-off. (See ROA No. 134 and Thirteenth Affirmative Defense.) Similarly, while Plaintiff asserts the documents include the private financial information of company members, this statement appears incorrect: No references to other individual members or partners could be located within Exhibits 48, 49 and 51. With respect to Exhibit 50, the document filed conditionally under seal redacts partner contributions and distributions, other than those referring to Kris Friedrich. (See Exhibit 50.) Thus, while it is true that financial information falls within the constitutional right to privacy (See <i>Valley Bank of Nevada v. Superior Court</i> (1975) 15 Cal.3d 652, 656), the financial information provided is relevant to the resolution of the motion for summary judgment and Plaintiff has not established that any privacy interest outweigh the presumption of access to court records. “[W]hen evaluating whether records should be sealed under the common law, courts engage in a balancing analysis, weighing the presumption of access against a variety of competing interests.” (<i>Overstock.com, Inc. v. Goldman Sachs Grp. Inc.</i> (2014) 231 Cal.App.4th 471, 484.) “Thus, the question in the context of sealing is whether the state-recognized privacy interest in financial information overrides the federal constitutional right of access to court records. This is necessarily a balancing inquiry, dependent on the facts and circumstances of the particular case.” (<i>Id.</i> at p. 504.) Here, the Declaration offered solely from Counsel for DFB Portal, LLC and 240 Tech, LLC, wherein he asserts simply that the information is “not information that is generally available to the public” (§10 of Hedricks Declaration), is insufficient to support sealing, as it does not establish an overriding interest, likely to suffer prejudice. The declaration offered does not contain “facts sufficient to justify the sealing.” (Cal. Rules of Court rule 2.551(b)(1).) “[A]t a minimum...the party seeking to seal documents, or maintain them under seal, must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them.” (<i>H.B. Fuller Co. v. Doe</i> (2007) 151 Cal.App.4th 879, 894.)
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		Consequently, the Motion to Seal is DENIED.
56	Quick Bridge Funding, LLC vs. Quick Claims Adjusting LLC 26-01539598	Motion to Set Aside/Vacate Default and Judgment NO TENTATIVE RULING - Parties to appear on Zoom or in-person.
57	The San Juan Company LLC vs. Hjorth-Olsen 24-01429184	Motion for Judgment on the Pleadings Defendant Ole Hjorth-Olsen (“Defendant”) moves for judgment on the pleadings as to the First Amended Complaint (“FAC”) filed by The San Juan Company, LLC and DMB San Juan Investment North, LLC (collectively, “Plaintiffs”). The motion is DENIED for the reasons set forth below. Defendant’s request for judicial notice of Plaintiff’s FAC is GRANTED. (Evid. Code § 452, subd. (d).) Meet and Confer Moving counsel represents that the parties met and conferred by written correspondence regarding the issues raised in the motion but were unable to resolve them. (Gessin Decl., ¶¶ 2-4, Exs. A-B.) Code of Civil Procedure section 439, however, requires the parties to meet and confer in person, by telephone, or by video conference. The parties’ written correspondence did not satisfy that requirement. The Court notes the deficiency but considers the motion on its merits. First Cause of Action for Breach of Guaranty The elements of a cause of action for breach of contract are “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) The elements of a cause of action for breach of guaranty are (1) a valid guaranty; (2) principal obligor’s default; (3) and failure of the guarantor to perform under the guaranty. (See <i>Gray/CPB, LLC v. Kolokotronis</i> (2011) 202 Cal.App.4th 480, 486). A guarantor is one who promises to answer for the debt or perform the obligation of another when the person ultimately liable fails to pay or perform. (Civ. Code, § 2787; <i>Gramercy Investment Trust v. Lakemont Homes Nevada, Inc.</i> (2011) 198 Cal.App.4th 903, 911.) <u>The FAC alleges, in pertinent part, as follows:</u> In April 1990, Plaintiffs’ predecessors entered into a written License Agreement with Olsen Pavingstone, Inc. (“Olsen”). (FAC, ¶ 9 & Ex. A.) The license

	agreement granted Olsen use of a site. (Id.) Under the agreement, Olsen was required, upon termination, to return the property “in as good as condition as received,” conduct an environmental audit, and complete any necessary remediation. (FAC, ¶¶ 10–12.) In consideration for the execution of the agreement, Defendant executed a written personal guaranty unconditionally guaranteeing Olsen’s full and timely performance under the License Agreement. (FAC, ¶ 13 & Ex. A.) The License Agreement terminated on March 31, 2022, after which Plaintiffs gave Olsen additional time to vacate and restore the property. (FAC, ¶ 14.) Olsen, however, failed to return the property in the condition required by the agreement. (FAC, ¶¶ 14–20.) Plaintiffs performed their obligations and provided all required notices. (FAC, ¶ 29.) Despite demands, Defendant failed to respond or perform under the guaranty, causing Plaintiffs damages. (FAC, ¶¶ 24–25, 28, 30.) <u>The FAC alleges sufficient facts to state a claim for breach of guaranty.</u> Defendant argues that the FAC fails to adequately allege breach. Specifically, Defendant contends that the allegation that Olsen failed to return the property “in as good as condition as received” is conclusory because the FAC does not describe the property’s condition at the beginning and end of the license term or identify the specific remediation required. Such details, however, are not required to state a claim for breach of guaranty. The FAC identifies the relevant contractual duties and alleges that Olsen breached those duties by failing to restore the property after the License Agreement terminated. (FAC, ¶¶ 11-12, 20.) The FAC further alleges that Defendant unconditionally guaranteed Olsen’s full and timely performance, received demands to honor the guaranty, and failed to respond or perform. (FAC, ¶¶ 13, 24–25, 28.) These ultimate facts sufficiently apprise Defendant of the nature and basis of the alleged breach. As to Plaintiffs’ performance, Defendant contends that the FAC fails to plead performance or excuse. The FAC, however, alleges that Plaintiffs performed their obligations and provided all required notices. (FAC, ¶ 29.) Satisfaction of contract conditions may be pleaded generally (e.g., “plaintiff has duly performed all conditions on his part”). (Code Civ. Proc., § 457; <i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1390.) Defendant also argues that Plaintiffs improperly seek to hold him liable for the \$828,341.90 default judgment entered against Olsen in the prior action, even though he was not a party to that action. Although the prior judgment does not bind Defendant, Plaintiffs seek recovery for his alleged breach of the guaranty rather than direct enforcement of the judgment against him. “A contract of guaranty gives rise to a separate and independent obligation from that which binds the principal debtor.” (<i>Talbott v. Hustwit</i> (2008) 164 Cal.App.4th 148, 151.) Regarding damages, Defendant argues that the FAC fails to allege recoverable damages adequately. The FAC, however, alleges that Defendant’s breach caused at least \$828,341.90 in damages, plus interest. (FAC, ¶ 30.) The allegation that Defendant transferred some or all of his obligations under the guaranty to Pernille Hjorth-Olsen in approximately 2012 also does not defeat the claim. (FAC, ¶ 27.) Generally, the burden of an obligation may be transferred only with the consent of the party entitled to its benefit. (Civ. Code, § 1457.) The
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		FAC does not allege that Plaintiffs consented to Defendant's release or agreed to a novation. Accordingly, any uncertainty concerning the transfer's terms or legal effect does not establish on the face of the FAC that Defendant was discharged from the guaranty. Finally, Defendant's references to a potential statute-of-limitations defense and the City of San Juan Capistrano's possible responsibility do not establish a defect on the face of the FAC. The FAC does not establish that the claim is time-barred, and Defendant's assertion concerning the City relies on facts outside the pleadings. Accordingly, the motion for judgment on the pleadings is denied. Plaintiffs to give notice.
58	Luera vs. Ford Motor Company 24-01450066	Motion for Judgment on the Pleadings Defendant Theodore Robins Ford, Inc. dba Theodore Robins Ford's ("Theodore Robins Ford") motion for judgment on the pleadings is GRANTED. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve within 15 days of service of the notice of ruling. A defendant may move for judgment on the pleadings where the court has no jurisdiction of the subject of the cause of action alleged in the complaint or the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc, § 438 subd. (c)(1)(B).) The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (<i>Bezirdjian v. O'Reilly</i> (2010) 183 Cal.App.4th 316, 321-322, citing <i>Schabarum v. California Legislature</i> (1998) 60 Cal.App.4th 1205, 1216.) Theodore Robins Ford contends the cause of action for negligent repair is barred by the statute of limitations. "Generally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.' " (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 806.) The discovery rule provides an exception by postponing the accrual of a cause of action until the plaintiff either discovers or has reason to discover the cause of action, which occurs when the plaintiff has reason to suspect a factual basis for a cause of action. (<i>Id.</i> at p. 807; <i>Norgart v. Upjohn Co.</i> (1999) 21 Cal.4th 383, 397-398.) A plaintiff has reason to suspect a factual basis for a cause of action when he or she "has ' " " " "notice or information of circumstances to put a reasonable person on inquiry.' " " " " " (<i>Norgart, supra</i>, 21 Cal.4th at p. 398; <i>Kline v. Turner</i> (2001) 87 Cal.App.4th 1369, 1374 (<i>Kline</i>).) "For purposes of accrual of the limitations period, inquiry notice is triggered by suspicion." (<i>E-Fab, Inc. v. Accountants, Inc. Services</i> (2007) 153 Cal.App.4th 1308, 1319 (<i>E-Fab</i>).) The plaintiff need not know the specific facts necessary to establish the elements of the cause of action, but must, within the applicable limitations period, "seek to learn the facts necessary to bring the cause of action in the first place." (<i>Norgart, supra</i>, 21 Cal.4th at p. 398; <i>Kline, supra</i>, 87 Cal.App.4th at p. 1374.)

		The FAC alleges Theodore Robins Ford negligently repaired the Subject Vehicle during the repairs performed on or around February 24, 2020, and October 5, 2020. (FAC ¶ 31.) During the February 24, 2020 repair visit, Theodore Robins Ford documented multiple transmission-related concerns, replaced the 10-speed transmission assembly and transmission cooler and reprogrammed the PCM, yet failed to properly diagnose, repair, test, and verify the underlying transmission and fluid sealing defects, resulting in the continued manifestation of transmission-related problems following the repair. (<i>Id.</i>) During the October 5, 2020, repair visit, Theodore Robins Ford again identified transmission fluid leaks, replaced the transmission pan, gasket, and rear seal after confirming fluid leakage through the transmission pan and from the rear seal area. (FAC ¶ 32.) Despite these repairs, the Subject Vehicle continued to experience transmission-related failures and fluid leaks. (<i>Id.</i>) Here, the FAC’s allegations indicate that the negligent cause of action accrued by October 2020. Plaintiff alleges Theodore Robins Ford again identified transmission fluid leaks at the October 5, 2020 visit. (FAC ¶ 33.) This is sufficient to “put a reasonable person on inquiry.” (<i>Norgart, supra</i>, 21 Cal.4th at p. 398.) Plaintiff has not alleged any facts that would invoke the discovery rule or other exception that would postpone the accrual of the negligent repair cause of action. Theodore Robins Ford also contends Plaintiff fails to state a cause of action for negligent repairs because the FAC does not adequately allege causation or damages. To plead a claim for negligent repair, a plaintiff must allege the elements of negligence. The elements of negligence are duty, breach, causation, and damages. (<i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1072.) The FAC alleges Theodore Robins Ford’s repeated failure to properly diagnose, repair, inspect, test, and verify the condition of the transmission system and associated fluid sealing components after multiple repair attempts directly and proximately caused the continued transmission malfunction, fluid leakage, loss of drivability, and resulting damages suffered by Plaintiff. (FAC ¶ 34.) The FAC does not state what damages Plaintiff suffered from Theodore Robins Ford’s alleged conduct. The allegations are insufficient to support a cause of action for negligent repair, and also prevent a determination as to the applicability of the economic loss rule and the independent tort doctrine. Without more, the court is unable to analyze whether Plaintiff is seeking tort recovery for purely economic losses. The motion for judgment on the pleadings is granted with leave to amend within 15 days of service of notice. Defendant Theodore Robins Ford, Inc. to give notice.
59	Landau vs. 138 6th Street, LLC 22-01245356	Motion for Judgment on the Pleadings Cross-Defendant Albert J. Brown, as Trustee of the Al Brown Trust dated December 5, 1989 (“Brown”), moves for judgment on the pleadings as to Cross-Complainant 138 6th Street, LLC’s (“138”) Second Cause of Action for express contractual indemnity and Third Cause of Action for equitable indemnity. The motion is DENIED for the reasons set forth below.

Second Cause of Action for Express Contractual Indemnity

“Express indemnity” refers to an obligation that arises by virtue of express contractual language establishing a duty in one party to save another harmless upon the occurrence of specified circumstances. (*Prince v. Pacific Gas & Electric Co.* (2009) 45 Cal.4th 1151, 1157.) An indemnitee seeking to recover on an agreement for indemnification must allege the parties' contractual relationship, the indemnitee's performance of that portion of the contract which gives rise to the indemnification claim, the facts showing a loss within the meaning of the parties' indemnification agreement, and the amount of damages sustained. (*Four Star Elec., Inc. v. F & H Constr.* (1992) 7 Cal.App.4th 1375, 1380.)

The Cross-Complaint sufficiently alleges these elements. It alleges that Brown and 138 entered into a written indemnity agreement in connection with the sale of the property. (Cross-Complaint, ¶ 11 & Ex. C.) The indemnity agreement states:

“Seller indemnifies, defends, protects, and holds Buyer harmless from and against any and all actions, awards, claims, costs, damages, demands, expenses (including, without limitation, reasonable attorneys’ fees, costs and expenses and court costs and expenses), fees, judgments, liabilities, liens, losses and obligations (collectively, “Claims”) in any way arising or resulting from or in connection with that certain Residential Lease Agreement dated January 15, 2014 between Seller, as landlord, and Lisa Landau and Joshua Elder, together as tenant (collectively, “Tenant”), and Tenant’s occupancy of the Property prior to the close of escrow, including but limited any [sic] and all Claims set forth in that certain Letter Re: Demand for Compensation of Damages dated October 6, 2020 from Tenant’s attorney Bryan K. Theis of the Theis Law Group, PC to Seller. This indemnity shall survive the close of escrow.”

The Cross-Complaint further alleges, Brown agreed to defend and indemnify 138 against claims arising from or connected with the lease and the tenants’ pre-escrow occupancy. (*Ibid.*) The agreement expressly includes the claims identified in the tenants’ October 6, 2020 demand. (*Ibid.*)

The Cross-Complaint also alleges that 138 performed its obligations under the indemnity agreement. (Cross-Complaint, Second Cause of Action, ¶ 10.) And that 138 tendered the defense of the underlying action to Brown on April 19, 2022. (Cross-Complaint, ¶ 18.) Brown allegedly refused to defend or indemnify 138. (*Ibid.*) As a result, 138 alleges that it incurred defense costs and other damages. (Cross-Complaint, Second Cause of Action, ¶¶ 11–12.)

Brown argues that the SAC seeks to hold 138 liable only for its own post-acquisition conduct. The SAC, however, alleges that the hazardous conditions and Plaintiffs’ exposure began during Brown’s ownership. (SAC, ¶¶ 9–18.) It alleges that Brown’s attempted repairs were inadequate. (SAC, ¶¶ 11–15.) It also alleges that Plaintiffs suffered damages from the conduct of Defendants “and of their predecessor.” (SAC, ¶ 27.) In addition, the SAC alleges that Brown’s knowledge was imputed to 138 as the assignee of the rental agreement. (SAC, ¶ 6.)

These allegations overlap with the claims identified in the October 2020 demand, which the indemnity agreement expressly covers. The pleadings therefore do not establish that all claims against 138 fall outside the agreement as a matter of law. Whether Plaintiffs’ injuries arose from pre-escrow conditions, 138’s post-acquisition conduct, or both presents a factual question that cannot be resolved on

		the pleadings. Because the pleadings indicate that at least some of Plaintiffs' claims may fall within the agreement, Brown has not established that the Second Cause of Action fails in its entirety. Accordingly, the motion as to the Second Cause of Action is DENIED. <u>Third Cause of Action for Equitable Indemnity</u> The elements of a cause of action for equitable indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is equitably responsible. (<i>Prince v. Pacific Gas & Electric Co.</i>, <i>supra</i>, 45 Cal.4th at p. 1157.) Equitable indemnity is premised on a joint legal obligation to another for damages, subject to allocation of fault principles and comparative equitable apportionment of loss. (<i>Id.</i> at p. 1158.) The Cross-Complaint alleges that any liability imposed on 138 is not the result of 138's own conduct. (Cross-Complaint, Third Cause of Action, ¶ 14.) Instead, it alleges that any such liability arises from Brown's negligence, carelessness, fraud, conduct, acts, or omissions. (<i>Ibid.</i>) It further alleges that Brown received notice of Plaintiffs' claims but refused to indemnify 138. (<i>Id.</i>, ¶ 15.) Finally, it alleges that Brown is equitably responsible for the losses and expenses 138 incurs in the underlying action. (<i>Id.</i>, ¶ 16.) The SAC alleges that Plaintiffs experienced mold, rodent contamination, and HVAC defects beginning during Brown's ownership. (SAC, ¶¶ 9–18.) It alleges that Plaintiffs were exposed to mold, rodent urine and feces, and other toxins beginning in at least 2016. (SAC, ¶ 17.) It also alleges that Plaintiffs' injuries resulted from the conduct of Defendants and their predecessor. (SAC, ¶ 27.) The SAC does not apportion Plaintiffs' injuries or damages between Brown's and 138's respective periods of ownership. Brown was subsequently identified as Doe 1 in the underlying action. (ROA 100.) On the face of the pleadings, Brown and 138 may be successive tortfeasors whose alleged conduct contributed to the same continuing or indivisible injuries. Whether they share liability presents a factual question that cannot be resolved on the pleadings. Allocating any liability between their respective periods of ownership likewise requires the resolution of factual issues beyond the pleadings. Brown has therefore not established that equitable indemnity is unavailable as a matter of law. Accordingly, the motion as to the Third Cause of Action is DENIED. <u>Ambiguity Regarding Claims</u> Brown alternatively argues that any ambiguity concerning whether Plaintiffs' claims arose before or after escrow demonstrates that 138 failed to allege a covered loss. However, the pleadings do not establish that Plaintiffs' claims arose solely after escrow. Any uncertainty may be resolved through discovery. Accordingly, the motion for judgment on the pleadings as to the Second and Third Causes of Action is DENIED. Cross-Complainant is ordered to give notice.
61	Samuel-K vs. Cara	Motion for Summary Judgment and/or Adjudication

	23-01335192	Defendants Tom Malloy Corp. dba Trench Shoring Company, and Mike Cara’s motion for summary judgment, or, alternatively, summary adjudication is DENIED. A party may move for summary judgment in an action if it is contended that the action has no merit or that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (a)(1).) Similarly, a party may move for summary adjudication as to one or more causes of action within an action if the party contends that the cause of action has no merit. (Code Civ. Proc., § 437c, subd. (f)(1).) “A [defendant] has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., §437c, subdivision (p)(2).) Once that burden is met, the burden shifts to Plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826 (“<i>Aguilar</i>”), 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id. at p. 851.) But, “pointing out the absence of evidence to support a plaintiff’s claim is insufficient to meet the moving defendant’s initial burden.” (<i>Gaggero v. Yura</i> (2003) 108 Cal.App.4th 884, 891.) “The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (Ibid, citing <i>Aguilar</i> at p. 855, fn. 23). Thus, if a moving defendant fails to meet their prima facie burden, the burden never shifts to plaintiff to show the existence of a triable issue of material fact. Here, Defendants move for summary judgment, or, alternatively, summary adjudication in their favor on the grounds that Plaintiff is barred from introducing expert testimony at trial because he failed to designate any experts and it is too late to do so now. First, pointing out the absence of evidence to support Plaintiff’s claim is insufficient to meet Defendants’ initial moving burden. (<i>Aguilar</i> at p. 854-855; <i>Gaggero v. Yura</i>, supra, 108 Cal.App.4th at p. 891.) Second, Defendants are incorrect that Plaintiff is barred from introducing expert testimony at trial. Trial in this matter was initially set for trial on 9/16/24. (ROA 24.) Trial and all related deadlines were then continued to 9/16/24 and again to 3/23/26. (ROA 33, 64.) Significantly, on 3/23/26, the Court vacated the jury trial and set a trial setting conference. (ROA 107.) Trial was subsequently set for 3/8/27. (ROA 117.) When the 3/23/26 trial date was “vacated” all trial related discovery deadlines, including expert discovery deadlines, were reset and calculated from the 3/8/27 trial date. Based on the 3/8/27 trial date, the time to make a demand for expert witness information or designate said experts has not elapsed. (See Code of Civ. Proc. § 2034.210, et seq.) Accordingly, Defendants have failed to establish that Plaintiff is barred from introducing expert testimony at trial set for 3/8/27.
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		Based upon the foregoing, Defendants have failed to meet their initial moving burden of persuasion. Because Defendants have not met their initial moving burden, the burden does not shift to Plaintiff to show the existence of a triable issue of material fact. Accordingly, the motion is DENIED. Moving Defendants to give notice.